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April 21, 2026

COMMITTEE SUBSTITUTE
FOR ENGROSSED
HOUSE BILL NO. 3114

By: Wilk, Hardin, Turner, and
Wolfley of the House

and

Hamilton of the Senate

An Act relating to the Department of Corrections; amending 57 O.S. 2021, Section 510.9, which relates to the Electronic Monitoring Program; modifying elements of program eligibility; updating statutory language; updating statutory reference; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 57 O.S. 2021, Section 510.9, is amended to read as follows:

Section 510.9. A. There is hereby created the Electronic Monitoring Program for inmates in the custody of the Department of Corrections who are sentenced for a nonviolent ~~offense~~ crime not included as a violent ~~offense~~ crime defined in Section 571 of this title. The Department is authorized to use an electronic monitoring global positioning device to satisfy its custody duties and responsibilities.

1 B. After an inmate has been processed and received through a
2 Department Assessment and Reception Center, has a home offer, and
3 has met the criteria established in subsection C of Section 521 of
4 this title, the Director of the Department of Corrections may assign
5 the inmate, if eligible, to the Electronic Monitoring Program. The
6 following inmates, youthful offenders, and juveniles shall not be
7 eligible for assignment to the program:

8 1. ~~Any inmate~~ Inmates who have completed less than twenty
9 percent (20%) of their sentence;

10 2. Inmates serving a sentence of more than ten (10) years who
11 ~~has~~ have one thousand ninety-five (1,095) days or more left on the
12 sentence;

13 ~~2.~~ 3. Inmates convicted of a violent offense crime within the
14 previous ten (10) years or convicted of a violation enumerated in
15 Section 13.1 of Title 21 of the Oklahoma Statutes;

16 ~~3.~~ 4. Inmates convicted pursuant to Section 11-902 of Title 47
17 of the Oklahoma Statutes who are not receptive to substance abuse
18 treatment and follow-up treatment;

19 ~~4.~~ 5. Inmates deemed by the Department to be a security risk or
20 threat to the public;

21 ~~5.~~ 6. Inmates requiring educational, medical, or other services
22 or programs not available in a community setting as determined by
23 the Department;

1 ~~6.~~ 7. Inmates convicted of any crime related to domestic abuse
2 as provided for in Section 644 of Title 21 of the Oklahoma Statutes
3 or who have an active protection order that was issued under the
4 Protection from Domestic Abuse Act;

5 ~~7.~~ 8. Inmates who have outstanding felony warrants or detainers
6 from another jurisdiction;

7 ~~8.~~ 9. Inmates convicted of a sex offense who, upon release from
8 incarceration, would be required by law to register pursuant to the
9 Sex ~~Offender~~ Offenders Registration Act;

10 ~~9.~~ 10. Inmates convicted for any crime against a child or abuse
11 pursuant to Section 843.5 of Title 21 of the Oklahoma Statutes;

12 ~~10.~~ 11. Inmates convicted of exploitation of a vulnerable adult
13 pursuant to Section 843.3 of Title 21 of the Oklahoma Statutes;

14 ~~11.~~ 12. Inmates convicted of racketeering activity as defined
15 in Section 1402 of Title 22 of the Oklahoma Statutes;

16 ~~12.~~ 13. Inmates convicted pursuant to subsection F of Section
17 2-401 of Title 63 of the Oklahoma Statutes;

18 ~~13.~~ 14. Inmates convicted pursuant to Section 650 of Title 21
19 of the Oklahoma Statutes;

20 ~~14.~~ 15. Inmates convicted of driving under the influence
21 resulting in great bodily injury pursuant to subsection B of Section
22 11-904 of Title 47 of the Oklahoma Statutes;

1 16. Inmates who have escaped from a medium or maximum custody
2 penal or correctional institution within the previous ten (10)
3 years; or

4 ~~15.~~ 17. Inmates who currently have active misconduct actions on
5 file with the Department of Corrections.

6 C. Every eligible inmate assigned to the Electronic Monitoring
7 Program shall remain in such program until one of the following
8 conditions has been met:

9 1. The inmate discharges the term of the sentence;

10 2. The inmate is removed from the Electronic Monitoring Program
11 for violation of any rule or condition of the program and reassigned
12 to imprisonment in a correctional facility; or

13 3. The inmate is paroled by the Governor pursuant to Section
14 332.7 of this title.

15 D. After an inmate has been assigned to the Electronic
16 Monitoring Program, denial of parole pursuant to Section 332.7 of
17 this title, shall not be cause for removal from the program,
18 provided the inmate has not violated the rules or conditions of the
19 program. The inmate may remain assigned to the program, if
20 otherwise eligible, until the completion of the sentence. Loss of
21 eligibility for the program shall result in removal of the inmate
22 from the program.

23 E. The Electronic Monitoring Program shall require active
24 supervision of the inmate in a community setting by a correctional

1 officer or other employee of the Department of Corrections with
2 monitoring by a global positioning device approved by the Department
3 under such rules and conditions as may be established by the
4 Department. If an inmate violates any rule or condition of the
5 program, the Department may take necessary disciplinary action
6 consistent with the rules established pursuant to this section
7 including reassignment to a higher level of security or removing the
8 inmate from the program with reassignment to imprisonment in a
9 correctional facility. Any inmate who escapes from the Electronic
10 Monitoring Program shall be subject to the provisions of Section 443
11 of Title 21 of the Oklahoma Statutes.

12 F. Upon an inmate assigned to the Electronic Monitoring Program
13 becoming eligible for parole consideration, pursuant to Section
14 332.7 of this title, the Department of Corrections shall deliver the
15 inmate, in person, to a correctional facility for an interview,
16 together with any Department records necessary for the Pardon and
17 Parole Board's investigation. Inmates assigned to the Electronic
18 Monitoring Program shall not be allowed to waive consideration or
19 recommendation for parole.

20 G. Prior to placement of any eligible inmate assigned to the
21 Electronic Monitoring Program ~~being placed~~ in a community setting,
22 the Department of Corrections shall deliver a written notification
23 to the sheriff and district attorney of the county, and the chief
24 law enforcement officer of any incorporated city or town in which

1 the inmate is to be monitored and supervised under the program. The
2 Department of Corrections shall provide notice of the projected date
3 of release of an inmate to the designated Oklahoma victim
4 notification service provider within sixty (60) days but not less
5 than seven (7) days prior to the projected date of release of the
6 inmate.

7 H. An inmate assigned to the Electronic Monitoring Program may
8 be required to pay the Department of Corrections for all or part of
9 any monitoring equipment or fee, substance abuse treatment program
10 or follow-up treatment expense, supervision cost, or other costs
11 while assigned to the program. The Department shall determine
12 whether the inmate has the ability to pay all or part of such fee or
13 costs.

14 I. The Department of Corrections shall develop policies and
15 procedures necessary to implement the Electronic Monitoring Program
16 including, but not limited to, methods of monitoring and
17 supervision, disciplinary action, reassignment to higher and lower
18 security levels, removal from the program, and costs of monitoring
19 and supervision to be paid by the inmate, if any.

20 J. An inmate assigned to the Electronic Monitoring Program
21 shall, within thirty (30) days of being placed in a community
22 setting, report to the court clerk and the district attorney of the
23 county from which the judgment and sentence resulting in
24

1 incarceration arose to address payment of any fines, costs,
2 restitution, and assessments owed by the inmate, if any.

3 SECTION 2. This act shall become effective November 1, 2026.

4 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
5 April 21, 2026 - DO PASS AS AMENDED BY CS
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